LILLIAN MAHLANGU

AND

LILLIAN MAHLANGU N.O

AND

MANDLA MAHLANGU

Versus

MELUSI MAHLANGU

AND

MINISTER OF LANDS, AGRICULTURE, FISHERIES, WATER AND RURAL SETTLEMENT

AND

THE MASTER OF THE HIGH COURT N.O

AND

BUBI RURAL DISTRICT COUNCIL

HIGH COURT OF ZIMBABWE
KABASA J
BULAWAYO 19 FEBRUARY AND 11 MAY 2026

Opposed Application

P. Dube, for the 1st, 2nd and 3rd applicants
Z. Ncube, for the 1st respondent
No appearance for the 2nd, 3rd and 4th respondents

KABASA J: This is an application for a declarator wherein the applicants seek the following order: -

a. The offer letter dated the 28th of July 2010 in the names of the 1st respondent in respect of Subdivision 20 Hambakahle in Bubi District of Matabeleland North Province measuring 120 Hectares and the Housing Occupancy Certificate that is stamped in 2022 in the names of the 1st respondent in respect of Subdivision 20 Hambakahle in Bubi District of Matabeleland North Province measuring 120 Hectares be and is hereby nullified/cancelled and set aside.
b. The 1st applicant as the surviving spouse of the Late Richard Mahlangu, be and is hereby declared the rightful possessor and occupier of resettlement land being Subdivision 20 Hambakahle in Bubi District of Matabeleland North Province measuring 120 Hectares

registered under the Housing Occupancy Certificate dated the 28th of June 2005 in favour of the Late Richard Mahlangu.

c. The 2nd respondent be and is hereby ordered and directed to favour the 1st applicant with an offer letter in her names in respect of Subdivision 20 Hambakahle in Bubi District of Matabeleland North Province measuring 120 Hectares within ten (10) days of granting of this order.
d. Costs at an Attorney-Client Scale.

The background to the application is this: -

The 1st applicant was married to the late Richard Mahlangu from 28 October 1966 until his death on 1 July 2005. During the marriage, they lived as husband and wife at Plot 20 Hambakahle in Bubi District, measuring about 120 hectares. The plot was formally registered in Richard Mahlangu's name through a Bubi District Housing Occupancy Certificate dated 28 May 2005. The 1st applicant avers that the 1st respondent only stayed at this plot because her father-in-law, Mbunjwa Mahlangu, allowed him to do so as a gesture of kindness. The 1st respondent was raised by the Mahlangu family from infancy, but after Mbunjwa's death he began claiming to be the sole heir to Mbunjwa Mahlangu. This led to disputes with the late Richard Mahlangu, which were reported to Chief Mtshane Khumalo. In 2004 the Chief allegedly ordered the 1st respondent to vacate the property. After Richard Mahlangu's death, the 1st respondent allegedly became abusive and began claiming that Plot 20 Hambakahle belonged to him. The 1st applicant claims that without her knowledge, the 1st respondent approached the relevant authority and falsely represented himself as the lawful occupier. As a result, the 2nd respondent allegedly issued him an offer letter allocating Plot 20 Hambakahle, despite him not having a valid housing occupancy certificate at the time.

In March 2022, the Applicant obtained a protection order against the 1st respondent for verbal and emotional abuse. During those proceedings, the 1st respondent allegedly testified that his real surname was Gumede, that he had been "adopted" by Mbunjwa Mahlangu, that the land was allocated to him by a committee of war veterans, and that he possessed a household occupancy certificate stamped in 2022. The 1st applicant argues that this is suspicious because the offer letter was allegedly issued in 2010, raising questions about how the occupancy certificate only emerged years later. She maintains that offer letters in Hambakahle were only issued to rightful occupiers who already held valid occupancy certificates, and therefore she, as surviving spouse and long-time occupier, had the right of first refusal. She further alleges that the 1st respondent has never occupied or developed the property as required by the

conditions of the offer letter, including taking permanent residence within 30 days of the issuance of the offer letter.

In 2021, the 1st respondent attempted to evict the applicant and other relatives through the Zimbabwe Land Commission and later by issuing eviction summons in the High Court, but those proceedings were dismissed under Rule 66(3) of the High Court Rules, 2021. The applicant states that despite repeatedly engaging the Zimbabwe Land Commission and writing to the relevant authority responsible for offer letters, the dispute remains unresolved. She claims she now lives under constant fear of eviction and cannot safely invest further in the farm. She highlights that herself and the 3rd respondent have made extensive developments on the property, including building structures, digging a well, constructing livestock kraals and a fowl run, fencing and subdividing the land into paddocks, planting crops, and preparing to sink boreholes. She alleges that the 1st respondent has made no developments and is attempting to benefit from their work.

She therefore seeks the court's intervention to set aside the offer letter allegedly issued to the 1st respondent and the 2022 stamped occupancy certificate, and to have herself declared the rightful possessor and lawful occupier of Plot 20 Hambakahle.

The application was opposed by the 1st respondent. The 2nd, 3rd and 4th respondents did not file any papers, an indication of their decision to abide by the court's decision.

The 1st respondent took several points *in limine*. The first was to the effect that the High Court has no jurisdiction to determine a dispute over allocation of gazetted State land which dispute is pending before the Zimbabwe Land Commission.

The second point *in limine* related to the fact that the applicants approached the court with dirty hands as they did not pay costs in the earlier application which was withdrawn after the applicants conceded to the points *in limine* that had been raised therein.

The third point *in limine* related to the lack of *locus standi* of the applicants to sue over the possession of gazetted land.

The fourth point *in limine* related to the fact that the application before the court was a disguised review application. It seeks to review the 2nd respondent's decision in awarding an offer letter to the 1st respondent. It ought to have been brought within 8 weeks of that decision.

The declaratur therefore seeks to escape the consequences of failing to adhere to the 8-week time line.

The fifth point *in limine* was to the effect that there is material dispute of fact incapable of being resolved on the papers.

The sixth point *in limine* related to the applicants' claim having prescribed.

On the merits of the matter, the 1st respondent argues that the matter is not suitable for a declaratory order under s 14 of the High Court Act because the applicants are not lawful holders or occupiers of the gazetted State land as defined in the Land Commission Act. He contends that he is the lawful occupier by virtue of a valid Model A2 Phase II offer letter issued to him on 28 July 2010.

He further submits that the applicants are improperly asking the court to compel the Minister to issue the 1st applicant with an offer letter, which the court cannot do where the land is already held under a valid offer letter. The 1st respondent argues that the applicants' reliance on an undated Bubi Rural District Council household occupancy certificate is incompetent because it is not a permit under the Land Commission Act and is not in the applicants' names. He also denies that the land can be registered under such a certificate. The claim is therefore legally untenable.

On that basis, he maintains that the application is baseless, an abuse of process, and should be dismissed with punitive costs.

This judgment will address two of the key points *in limine* taken by the 1st respondent. A resolution of these points in limine suffices without necessarily dealing with the rest of the points *in limine*. The first one is that the High Court has no jurisdiction to determine a dispute over allocation of gazetted State land which dispute is pending before the Zimbabwe Land Commission.

Advocate Dube, for the applicants contended that the 1st respondent cannot argue that the applicants failed to disclose his prior eviction proceedings in court, while also pursuing relief through the Land Commission. The 1st respondent cannot rely on the Land Commission's jurisdiction after having already approached the court, as this amounts to approbating and reprobating. The Land Commission's powers are limited by statute, particularly s 9 (3) of the Land Commission Act, which excludes matters already before a competent court or those

involving government-to-government dealings. Since the dispute arises from estate administration, jurisdiction lies with the court, not the Land Commission, which also lacks authority to issue declaratory orders. Moreover, the 1st respondent has not shown that his claim is pending before the Commission, and that it is not time-barred. Regarding this point, it is not clear whether the matter is still pending before the Land Commission. The court, therefore, cannot make a finding on its lack of jurisdiction to deal with the matter in the absence of evidence pointing to the fact that the Land Commission is indeed seized with the matter. The applicants can therefore not be barred from approaching this court.

The second point *in limine* related to the applicants approaching the court with dirty hands. Counsel for the applicants argued that the preliminary point based on non-payment of costs is raised in bad faith. She stated that when they withdrew the earlier application HCBF 308/25, they tendered wasted costs and attempted to negotiate the amount claimed, which they considered excessive. Counsel further submitted that the costs demanded have not been taxed and there is no court order compelling payment. Accordingly, they contend that they cannot be in contempt or accused of approaching the court with dirty hands in the absence of an enforceable order for costs. The principle of dirty hands governs a situation where a party is under a direct obligation imposed by law to act in a specific manner which obligation the party deliberately refuses to perform. See *CFI Retail (Private) Limited* v *Manyika* SC 08-16. I therefore agree with counsel for the applicants that the preliminary point is raised in bad faith. The costs were not taxed, and the applicants had asked for a revised amount as they considered the amount as excessive. There is, therefore, no reason to non-suit the applicant. The two points *in limine* lack merit and are accordingly dismissed.

I turn now to deal with the merits of the matter. As mentioned earlier, the applicants seek the relief of a declarator. It is trite that an application for a declaratory order ought to be considered and ventilated, considering the provisions of s 14 of the High Court Act. The requirements of a declaratory order were well ventilated in the case of *Munn Publishing (Pvt) Ltd v Zimbabwe Broadcasting Corporation* 1994 (1) ZLR 337 (S) at p 343-344, wherein the court stated that:

> "The condition precedent to the grant of a declaratory order is that the applicant must be an interested person, in the sense of having a direct and substantial interest in the subject matter of the suit which could be prejudicially affected by the judgment of the court. See *United Watch & Diamond Co (Pty) Ltd &Ors v Disa Hotels Ltd & Anor* 1972 (4) SA 409 (C) at 415 in fine; *Milani & Anor v South African Medical & Dental Council & Anor* 1990 (1) SA 899 (T) at 902G–H. The interest must relate to an existing, future

> or contingent right. The court will not decide abstract, academic or hypothetical questions unrelated to such interest. See *Anglo-Transvaal Collieries Ltd v S A Mutual Life Assurance Soc* 1977 (3) SA 631 (T) at 635G–H. But the existence of an actual dispute between persons interested is not a statutory requirement to an exercise by the court of jurisdiction. See *Ex p Nell* 1963 (1) SA 754 (A) at 759H–760A. Nor does the availability of another remedy render the grant of a declaratory order incompetent."

The applicants have an obligation to show that they have a right which is subject to being affected adversely if the court does not rule in their favour. *In casu*, the rights and interests that the late Richard Mahlangu had by virtue of possessing a certificate of occupancy form part of his estate. The 2nd applicant as the executor of the estate, therefore, has a direct and substantial interest as the rights of the plot in question form part of the estate.

The applicants seek to have the offer letter dated the 28 July 2010 in the names of the 1st respondent in respect of Plot 20 Hambakahle nullified and for the 1st applicant to be declared the rightful possessor and occupier of the plot in question. The applicants argue that the offer letter in the names of the 1st respondent was obtained fraudulently as the 1st respondent did not have a household occupancy certificate as proof that he occupied the plot in question. The applicants further allege that it was through making misrepresentations to the relevant authority that he obtained the offer letter. The Land Commission Act under s 23 explicitly empowers the Minister to issue offer letters, leases, deeds of grant and permits in respect of gazetted or other State land. There is no statutory requirement that a certificate of occupancy must exist first. In the case of *Commercial Farmers Union and Ors* v *Minister of Lands and Rural Resettlement and Ors* SC 31-2012 the court held that:

> "The holders of offer letters, permits or land settlement leases have the right of occupation and should be assisted by the courts, the police and other public officials to assert their rights. The individual applicants as former owners or occupiers of acquired land lost all rights to the acquired land by operation of the law."

In this regard, the papers before the court shows that the 1st respondent holds an offer letter which was duly issued by the relevant authority. The offer letter gives the 1st respondent the right of occupation that the court has a duty to protect. Nothing on record shows that the offer letter in question was obtained through fraudulent means. The onus lies on the applicant to prove the veracity of what he alleges. See *Ex-Constable Matseketsa A.* v *The Commissioner General of the Police and Anor* HH 79-18. The applicants have failed to substantiate their argument that the offer letter is fraudulent and should be nullified. The applicants, on the papers, have therefore failed to make a case for the relief sought.

I do not lose sight of the fact that the vindicatory action by the 1st respondent, which had been dismissed has since been reinstated. That matter had progressed to pre-trial stage and the issues identified therein relate, *inter alia*, to the very question of who has the right to the land in question and whether the 1st respondent, if it is determined that he is the rightful owner of that land, is therefore entitled to evict the applicants therefrom. It being an action matter, evidence will be led and all the issues properly ventilated thereby allowing the court to make an informed decision as to the validity of the 1st respondent's offer letter vis-a vis the applicants' claim that they ought to have the offer letter in 1st applicant's names.

The 1st respondent prayed for an award of punitive costs. Has a case been made for such? I think not. I am unable to say the applicants are guilty of conduct deserving of censure. Punitive costs are sparingly awarded as litigants should not be punished for bringing their matters to court where they genuinely believe they have a case worthy of resolution.

That said, I make the following order:

1. The application for a declaratur be and is hereby dismissed.
2. The1st and 3rd applicant shall pay costs at the ordinary scale, jointly and severally, the one paying, the other to be absolved.

Majoko and Majoko, applicants' legal practitioners
Ncube and Partners, 1st respondent's legal practitioners